

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

ROBERTO MALDONADO RIVERA,

SUMMONS

Plaintiff,

-against-

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER
SOLANYI PAREDES (Shield # 14335) and NYPD
OFFICERS JANE and JOHN DOE #'s 1-8 (Names and
Numbers are unknown at present) and other
Unidentified members of the New York City Police
Department,

Plaintiff Designates
Bronx County as
the place of trial

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 9, 2021

Respectfully submitted,

/s/ Sydney Ohagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
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TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER SOLANYI PAREDES (SHIELD # 14335), 52nd Precinct, Bronx, New York

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
ROBERTO MALDONADO RIVERA,

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NYPD OFFICER
SOLANYI PAREDES (Shield # 14335) and NYPD
OFFICERS JANE and JOHN DOE #'s 1-8 (Names and
Numbers are unknown at present) and other
Unidentified members of the New York City Police
Department,

Defendants.

-----X
Plaintiff **Roberto Maldonado Rivera**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint
herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendant unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff. In addition, plaintiff was subjected to an unlawful and invasive search. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Roberto Maldonado Rivera is a citizen of the United States and a resident of New York.

3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described therein.
4. NYPD OFFICER SOLANYI PAREDES assigned Shield # 14335 was and is at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. POLICE OFFICERS SOLANYI PAREDES (Shield # 14335) is being sued in their individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #2-8 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of the Plaintiff on September 21, 2020.

STATEMENT OF FACTS

15. On March 11, 2020, at approximately 8:42 a.m., in the vicinity Van Cortlandt Avenue and East Jerome Street, Bronx, New York, several police officers from the NYPD P.A.T.U. unit and/or the 52nd precinct, including upon information and belief, NYPD Officer Solanyi Paredes (Shield # 14335), and NYPD Officers John and Jane Does #'s 1-8, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Maldonado Rivera.
16. On that date and time, Plaintiff, who possessed a valid driver's license, was operating his vehicle while obeying all vehicle and traffic laws. Without justification, defendant officer PAREDES and/or JANE or JOHN DOE #'s 1-8 unlawfully signaled him to pull over. He complied with their demand and was then unlawfully approached by defendant PAREDES and JANE and/or JOHN DOE'S # 1-8. Defendants had no reason to approach Plaintiff as he was not engaged in any criminal

activity, had committed no traffic infraction or violated any ordinance. Defendants had not observed him engaging in any criminal or unlawful behavior.

17. Once defendants PAREDES and/or JANE and/or JOHN DOE # 1-8 signaled to Plaintiff Maldonado Rivera to pull his vehicle over, he was not free to leave.
18. Shortly after defendant officers PAREDES and JANE and/or JOHN DOE # 1-8 unlawfully approached Plaintiff, they, without justification, demanded he provided them with identification. Plaintiff provided his identification to defendant officer PAREDES and Jane and/or John Doe #1-8. Upon information and belief, defendant officers did not run his identification through any data system. Instead, the defendant officer standing near the passenger door, without requesting or receiving consent from Plaintiff, opened his car door and rifled through papers on the floor and retrieved a laminated piece of paper with the letters “FDNY” on it. Defendant officers then ordered Plaintiff out of the car and placed him in handcuffs. Plaintiff denies ever using the laminated paper for any purpose whatsoever.
19. While Plaintiff was transferred to the 52nd precinct. While there, defendants PAREDES and/or JANE and/or JOHN DOE’s # 1-8, performed a strip search on the Plaintiff, demanding he remove his clothing, squat, and cough. No contraband was ever recovered from Plaintiff.
20. While Plaintiff was incarcerated at the precinct and Central Booking, defendants PAREDES and JANE and/or JOHN DOE’s # 1-8 falsely and maliciously told the Bronx County District Attorney’s Office that plaintiff had committed the crime of Possession of Forged Instrument in the 3rd degree. At the time they conveyed this information, defendant officers had no information even suggesting that Plaintiff had any knowledge that this instrument was forged or that he intended to defraud anyone. Moreover, defendant officers possessed no indication that Plaintiff had ever used, or intended to use the piece of paper for any deceptive reason.

21. Based on defendant's false statements, the Bronx County District Attorney's office chose to prosecute Plaintiff Maldonado Rivera under docket CR-005430-20BX.
22. During his confinement, Plaintiff Maldonado Rivera was subjected to depraved, filthy and inhumane conditions. Plaintiff was incarcerated for approximately 27 hours. He lost wages totaling approximately \$200.
23. All charges against Plaintiff were dismissed and sealed on October 22, 2020.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

24. Plaintiff repeats and alleges paragraphs 1 through 23 as if fully set forth herein.
25. The acts and conduct of the defendants, PAREDES and/or JANE and JOHN DOE # 1-8 constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
26. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
27. As a result of the foregoing, Plaintiff's liberties were restricted for approximately 27 hours, he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.
28. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**MALICIOUS PROSECUTION**

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.
30. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
31. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, providing false allegations to the District Attorney that he had committed an unidentified traffic infraction and knowingly possessed a fraudulent instrument. As a result, Plaintiff suffered a serious deprivation of liberty. Plaintiffs obtained a favorable termination on the fabricated charges .
32. Defendants commenced and continued a criminal proceeding against plaintiff.
33. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
34. The prosecution and criminal proceedings terminated favorably to plaintiff on October 22, 2020.
35. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
36. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION**NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.
38. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, PAREDES and/or JANE or JOHN DOE # 1-8, individuals who were unfit for the performance of NYPD duties.
39. The aforementioned acts of negligent hire, retention, training, and supervision by the City of New York and the New York City Police Department include, but are not limited to failing to take reasonable control/and or discipline officers who lie, fabricate evidence, engage in illegal acts toward other police officers or civilians, and/or commit perjury to cover up police misconduct and/or inflate arrest statistics.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF****DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

40. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
41. All of the aforementioned acts of defendants PAREDES and/or NYPD OFFICERS JOHN and JANE DOE" #1-8, their agents, servants, and employees, were carried out under the color of state law.
42. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

43. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
44. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
45. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
47. As a result of the aforesaid conduct by defendant PAREDES and/or POLICE OFFICERS “JANE or JOHN DOE” #1-8, plaintiff was subjected to an illegal, improper, and false arrest by the defendants PAREDES and POLICE OFFICERS “JOHN DOE” #1-8, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
48. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for her safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

49. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
50. Plaintiff was searched by defendants PAREDES and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 without an individualized reasonable suspicion that plaintiff had committed any crime or in possession of any illicit contraband or any other illegal substances.
51. As a result of the aforesaid conduct by defendants PAREDES and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 plaintiff’s person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. Plaintiff repeatedly told defendants that he was not consenting to a search at the time of his arrest. Yet, he was subjected to an invasive strip search requiring him to remove his clothing, squat, and cough in front of defendant officers.
52. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

53. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
54. Defendants PAREDES and/or POLICE OFFICERS “JOHN DOE” #1-8 created false evidence against the plaintiff, alleging that he committed several an unidentified traffic infraction when in truth, he had not in violation of any traffic law or ordinance.

55. Defendants PAREDES and POLICE OFFICERS “JOHN or JANE DOE” #1-8 forwarded false evidence and false information to prosecutors in the Bronx County District Attorney’s Office.
56. Defendants PAREDES and POLICE OFFICERS “JOHN DOE” #1-8 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
57. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants PAREDES and POLICE OFFICERS “JOHN DOE” #1-8 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
58. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

59. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
60. Defendants PAREDES and POLICE OFFICERS “JOHN DOE” #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff’s arrest throughout all phases of the criminal proceedings.

61. Defendants PAREDES and POLICE OFFICERS “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.
62. As a result of the defendants’ failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence, plaintiff sustained, *inter alia*, emotional injuries, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
64. Defendants PAREDES and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 misrepresented and falsified evidence before the Bronx County District Attorney, including providing false allegations to the District Attorney that he had committed an unidentified traffic infraction and knowingly possessed a fraudulent instrument.
65. Defendants PAREDES and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 did not make a complete and full statement of facts to the District Attorney, including that the stop of Plaintiff’s car was pretextual.
66. Defendants PAREDES and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 withheld exculpatory evidence from the District Attorney.
67. Defendants PAREDES and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

68. Defendants PAREDES and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 lacked probable cause to initiate criminal proceedings against plaintiff.
69. Defendants PAREDES and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 acted with malice in initiating criminal proceedings against plaintiff.
70. Defendants PAREDES and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
71. Defendants PAREDES and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 lacked probable cause to continue criminal proceedings against plaintiff.
72. Defendants PAREDES and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 acted with malice in continuing criminal proceedings against plaintiff.
73. Defendants PAREDES and/or POLICE OFFICERS “JOHN DOE” #1-8 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
74. Specifically, defendants’ PAREDES and/or POLICE OFFICERS “JOHN DOE” #1-8 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.
75. Notwithstanding the perjurious and fraudulent conduct of defendants PAREDES and/or POLICE OFFICERS “JOHN DOE” #1-8, the criminal proceedings were terminated in plaintiff’s favor on or about October 22, 2020.
76. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF**MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

77. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
78. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
79. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
 - E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and

F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

80. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

81. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

82. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

83. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

84. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

85. The acts complained of deprived the plaintiff of his right:

G. Not to be deprived of liberty without due process of law;

H. To be free from seizure and arrest not based upon probable cause;

I. Not to have summary punishment imposed upon them; and

J. To receive equal protection under the law.

WHEREFORE, ROBERTO MALDONADO RIVERA plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
June 9, 2021

Respectfully submitted:

By: *Sydney Ohagan*
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TO:

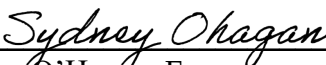
CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007
NYPD OFFICER SOLANYI PAREDES (SHIELD # 14335), 52nd Precinct, Bronx, New York

ATTORNEY'S VERIFICATION

I, **SYDNEY O'Hagan**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
June 9, 2021



Sydney O'Hagan, Esq.